

damages. (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894-895; *Moody v. McDonald* (1854) 4 Cal. 297, 299.) The current definitions of “malice” and “oppression” were changed by the 1987 amendments to Civil Code §3294, to incorporate “despicable conduct.” The amendments narrowed the definitions so that punitive damages will only be awarded to punish conduct that is so “vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down on and despised by ordinary decent people.” (*Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.) In addition, “[w]ith respect to a corporate employer, the advance knowledge of conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (CCP § 3294(b).)

Here, the SAC properly alleges the 3rd cause of action for negligent hiring, supervision and retention, as discussed above. However, it includes an allegation seeking punitive damages that is not supported by the negligence allegations. (SAC ¶ 52.) Thus, the Court strikes paragraph 52 of the SAC, without leave to amend. Otherwise, the punitive damages challenge as to the 2nd cause of action is moot since the demurrer is sustained.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501412	SERRATO VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff’s Motion for Attorney’s Fees is granted in the reasonable reduced amount of \$ 22,400.50; as to costs, it is reduced to \$878.70.

Attorneys’ fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, “[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civil Code §1794(d).) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid.*)

On November 4, 2025, Plaintiff accepted GM’s settlement offer, which expressly provided that Plaintiff is the prevailing party and entitled to fees and costs. Defendant does not dispute that Plaintiff is the prevailing party, but argues that the fee request is unreasonable and excessive.

Lodestar:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

Billing Rates:

A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may rely on its own experience in determining whether the hourly rate sought is reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) In determining the value of the legal service, courts consider several factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (*PLCM Group, Inc., supra*, 22 Cal. 4th at 1096.)

Plaintiff requests hourly rates ranging from \$430 to \$695/hour. Based on the Fee Survey, the median rate for attorneys with 16-20 years of experience was \$422, while the median for 11-15 years was \$406. (Id.) While these rates should be adjusted upward for inflation, \$695/hour appears to be excessive for lemon law cases in Riverside County. Therefore, the rate requested by Attorney Barry, with 23 years of experience, should be adjusted down to \$600/hour. Attorney Storti requests a rate of \$600, which is reasonable for 25 years of experience. Likewise, the rates requested by Attorneys Rabienian and Pascal are arguably reasonable for six to seven years of experience.

Hours Incurred:

Plaintiff claims that counsel billed 40.6 hours on this case. Counsel produced extensive billing records showing the time for each tasks. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

GM argues that time incurred before Plaintiff became a client is not compensable. However, the Song Beverly Act provides for attorney's fees for actual time expended in connection with the *commencement* and prosecution of such action. (Civil Code §1794(d), emphasis added.) Because the initial phone calls with Plaintiff as a potential client and review of repairs were reasonably incurred in the commencement of the action, Plaintiff is able to recover these fees. Defendant also argues that 3 hours of client communication at a senior level rate is excessive. It is not clear that the hours are unreasonable since any information regarding the discussion would be privileged.

Defendant argues that the fees requested in connection with the Motion for Protective Order and the present fee motion are excessive because counsel relied on templates and has filed nearly identical briefs in other cases. The Court is aware of the use of templates in lemon law cases. However, in reviewing the records, it is not clear that the hours are excessive for reviewing and editing the templates. Overall, Defendant has not satisfied its burden of showing that the 40.6 hours requested are clearly unreasonable. The fee award is reduced by \$1,425 to reflect the reduced billing rate for Attorney Barry. Thus, the lodestar total is \$22,400.50.

Plaintiff requests .10 multiplier. The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery.” (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) A contingent fee is generally higher than a fee for the same legal services paid as they are performed to compensate for the loan of those services and risk of loss. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) “However, although taking a case on a contingent fee basis may support an award of a multiplier, it does not compel, it.” (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal. App. 4th 1179, 1188.) Here, the contingency risk was reduced due to the fee-shifting provision of the Song Beverly Act. The request for multiplier is denied.

Litigation Costs and Expenses:

“Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civil Code §1794(d).) The additional term “expenses” was included in this section to cover items that would not otherwise be included in the detailed statutory definition of “costs” under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

“If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs.” (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) The prevailing buyer bears the burden of showing that costs or

expenses were (1) reasonably necessary to the conduct of litigation and (2) reasonable in amount. (*Ibid.*)

On April 23, 2026, Plaintiff filed his Memorandum of Costs, requesting \$2,239.57 in costs and expenses.

Defendant argues that the jury fees should be stricken. Jury fees are proper on their face. (See CCP § 1033.5(a)(1).) Although the present case did not go to trial, Plaintiff was required to pay the jury fees in order to preserve the right to a jury trial in event the case did not settle. The jury fee must be paid on or before the date scheduled for the initial case management conference. (CCP § 631(c).) Therefore, the payment was reasonable and necessary.

Defendant also challenges the deposition costs, electronic filing fees and court reporter fees as unsubstantiated by evidence. Plaintiff was not required to include invoices with the Memorandum of Costs. However, once Defendant objected to these costs, Plaintiff was required to prove the expenses, which she has not done. As such, the costs is reduced by \$1360.87 for a total award of \$878.70

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505716	DOE VS SOUTHEASTERN CALIFORNIA CONFERENCE OF SEVENTH-DAY ADVENTIST	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: Defendant's Demurrer is overruled, as to the 4th Cause of Action (for sexual battery); and sustained as to the 1st (negligent supervision of a minor), 2nd (negligent supervision of an employee), 3rd (negligent retention), and 5th (NIED) causes of action with leave to amend within 20 days.

Pursuant to C.C.P. § 430.41(a), before filing a demurrer, the moving party must meet and confer in good faith with the plaintiff via phone or in person. Here, Defendant's counsel states that she sent one letter to Plaintiff's counsel regarding the demurrer, and Plaintiff's counsel did not reply. (See, Decl. of Donna Diaz at ¶¶ 2-3.) There is no evidence that defense counsel called Plaintiff's counsel to discuss the merits of the demurrer, or even followed up on the email sent. C.C.P. § 430.41(a) very clearly requires that parties meet and confer by telephone or in person, regardless of the prospects of an informal resolution, and based on the evidence presented, Defendant did not do this. Nonetheless, court exercises its discretion to consider the Demurrer.

Plaintiff first argues that the Court should overrule the demurrer because it is untimely. Pursuant to C.C.P. § 430.40(a), a demurrer must be filed within 30 days of service of the Complaint/FAC. Here, Plaintiff filed the FAC on March 20, 2026, and served it electronically the same day. Defendant filed its demurrer on April 23, 2026, 34 days later. Accordingly, Plaintiff is correct that the demurrer was not timely filed. However, the